

HOUSE No. 313

The Commonwealth of Massachusetts

PRESENTED BY:

David T. Vieira

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act encouraging smart growth and starter home zoning adoption.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>1/14/2025</i>

HOUSE No. 313

By Representative Vieira of Falmouth, a petition (accompanied by bill, House, No. 313) of David T. Vieira relative to smart growth and starter home zoning adoption. Community Development and Small Businesses.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 241 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act encouraging smart growth and starter home zoning adoption.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 40R of the General Laws, as most recently amended by Chapter 268 of the Acts
2 of 2022, is hereby amended in section 9 by striking out subsections (a) and (b) and inserting in
3 place thereof the following:-

4 (a) The commonwealth shall pay from the trust fund or other funds from appropriations
5 or other money authorized by the general court a zoning incentive payment, according to the
6 following schedule:

7 Projected Units of New Construction Payment

8 Up to 20 \$20,000

9 21 to 100 \$150,000

10 101 to 200 \$400,000

11 201 to 500 \$740,000

12 501 or more \$1,200,000

13 Subject to any conditions imposed by the department as a condition of approving a smart
14 growth zoning district or starter home zoning district, the zoning incentive payment shall be
15 payable upon confirmation of approval of the district by the department. The projected number
16 of units shall be based upon the zoning adopted in the smart growth zoning district or starter
17 home zoning district.

18 (b) The commonwealth shall pay from the trust fund or other funds from appropriations
19 or other money authorized by the general court a one-time density bonus payment to each city or
20 town with an approved smart growth zoning district and a one-time production bonus payment to
21 each city or town with an approved starter home zoning district. This payment shall be \$6,000
22 for each housing unit of new construction created in the smart growth zoning district and \$6,000
23 for each housing unit of new

24 construction created in the starter home zoning district. The amount due shall be paid on
25 a unit-by-unit basis in accordance with department regulations, upon submission by a city or
26 town of proof of issuance of a building permit for a particular housing unit or units within the
27 district.